

23STCV22258 23STCV22258

County: los-angeles

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Case Number: 23STCV22258 Hearing Date: September 1, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 309

TENTATIVE RULING

JANELLE

ARAMBULA

vs.

LOS

ANGELES COUNTY DEPARTMENT OF MENTAL HEALTH

Case No.: 23STCV22258

Hearing

Date: September 1, 2026

Defendant's

motion for attorney fees and costs is GRANTED IN PART, consistent with the guidance set forth below.

On 9/15/2023,

Plaintiff Janelle Arambula (Plaintiff) filed suit against Los Angeles County Department of Mental Health (Defendant). On 2/5/2024, Plaintiff filed a first amended complaint (FAC), alleging: (1) discrimination; (2) harassment; (3) retaliation; (4) failure to prevent; (5) failure to provide reasonable accommodation; (6) failure to engage in good faith interactive process; (7) retaliation; and (8) retaliation.

On 5/8/2026, Defendant moved for attorney fees totaling \$356,490 and \$17,882.65 in costs.

Legal Standard

The party claiming attorneys' fees must establish entitlement to such fees and the reasonableness of the fees claimed. (*Civic Western Corporation v. Zila Industries, Inc.* (1977) 66 Cal.App.3d 1, 16.) "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties[.]" (CCP § 1021.)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623.)

In exercising its discretion, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Id.*)

In determining what constitutes a reasonable compensation for an attorney who has rendered services in connection with a legal proceeding, the court may and should consider the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorneys' efforts, their learning, their age, and their experience in the particular type of work demanded the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (*Stokus v. Marsh* (1990) 217

Cal.App.3d 647, 657 (Stokus).)

In

determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is calculated by multiplying the total number of reasonable hours expended by the reasonable hourly rate. “Fundamental to its determination ... [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney ... in the presentation of the case.” (Serrano v. Priest (1977) 20 Cal.3d 25, 48 (Serrano III).) A reasonable hourly rate must reflect the skill and experience of the attorney. (Id. at 49.) “Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635 (Serrano IV); see also Weber v. Langholz (1995) 39 Cal.App.4th 1578, 1587 (“The trial court could make its own evaluation of the reasonable worth of the work done in light of the nature of the case, and of the credibility of counsel’s declaration unsubstantiated by time records and billing statements.”))

Reasonable

attorney fees should be based on an objective standard of reasonableness, i.e., the market value of services rendered, not on some notion of cost incurred. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1090.) The value of legal services performed in a case is a matter in which the trial court has its own expertise. (Id. at 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (Id.) The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. (Id.)

Discussion

Defendant

seeks attorney fees totaling \$356,490 and \$17,882.65 in costs, on the grounds

that Plaintiff's claims were objectively groundless and/or unreasonable.

Government

Code section 12965(c)(6) states that, for civil actions brought under the Fair Employment and Housing Act; "the court, in its discretion, may award to the prevailing party [...] reasonable attorney's fees and costs, including expert witness fees, except that, notwithstanding Section 998 of the Code of Civil Procedure, a prevailing defendant shall not be awarded fees and costs unless the court finds the action was frivolous, unreasonable, or groundless when brought, or the plaintiff continued to litigate after it clearly became so.

(Gov. Code § 12965(c)(6), emphasis added).)

The Supreme

Court's decision in *Christianburg Garment Co. v. EEOC* sets forth the standard for awarding prevailing defendants attorney's fees and costs, stating "such awards should be permitted 'not routinely, not simply because he succeeds, but only where the action is found to be unreasonable, frivolous, meritless or vexatious.'" (*Christianburg Garment Co. v. EEOC* (1978) 434 U.S. 412, 421, quoting *Carrion v. Yeshiva University* (2d. Cir. 1976, 535 F.2d 722, 727.)

Here,

the Court recognizes the important policy interests served by the FEHA statute, and does not wish to chill plaintiffs willingness to advocate on behalf of their rights. Accordingly, the Court declines to find that the action was frivolous or unreasonable when brought, as the parties had not had the benefit of discovery and Plaintiff was able to articulate potential reasons she believed she was discriminated based upon her requests for accommodation.

However,

the Court finds that by the time Defendant filed a motion for summary judgment, and the admissible evidence was available to both parties, there was no reasonable basis for Plaintiff to believe she had a colorable claim. Plaintiff was not able to present evidence of having suffered a material adverse action, as the evidence available overwhelmingly indicated that Plaintiff had been accommodated at every turn and every assertion by Plaintiff to the contrary was based on inadmissible, unsupported speculation. The Court agrees with Defendant that "Arambula's subjective belief that she was mistreated because she was not allowed to continue in her preferred assignment with the precise accommodation that she wanted was not grounds for maintaining a lawsuit that was objectively

unreasonable and groundless." (Reply, 2: 24-27.)

In

sum, the Court determines that Defendant is entitled as prevailing party to fees and costs incurred after the motion for summary judgment was filed. The Court will consider oral argument in order to determine a fixed date from which recoverable fees and costs are calculated.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar.